



Factual Update: Section 162 Application & Disclosure Query | Ref: JvS/166792

3 messages

Wilbur William Matthee <info@ethichawks.co.za>
To: Investigations <Investigations@jse.co.za>
Cc: Jowidene van Schalkwyk <Jowidenev@jse.co.za>

Fri, 20 Mar 2026 at 11:41

Dear Ms. Jada,

Please find attached a formal factual update regarding the existing file (Ref: JvS/166792) for AfroCentric Investment Corporation Limited (JSE: ACT).

While I respect the JSE's jurisdictional declination of 6 March 2026, I am placing the following urgent developments on the formal record for the Authority's assessment in the context of its continuous disclosure mandate:

High Court Filing: On 19 March 2026, an urgent Section 162 Director Delinquency Application was filed with the High Court (Western Cape Division) under Filing Reference HCGS951842. The application names the Lead Independent Director and the Chairs of the Social & Ethics and Audit & Risk Committees as individual Respondents.

SENS Announcement Sequence: On 18 March 2026—the day preceding this filing—the Company released a SENS announcement regarding a Sanlam transaction. On that same date, the share price reached a 52-week low of R0.71.

Material Disclosure Question: I am placing a factual question on the regulatory record regarding whether the omission of active material litigation—specifically the Section 162 application and an active B-BBEE Commission investigation (Case No. 5/02/2026) with a potential R580 million exposure—is consistent with JSE Listings Requirements.

I am not requesting a reopening of the declined matter but am providing these facts for whatever regulatory purpose the JSE considers appropriate within its mandate. I remain available to provide the full High Court application bundle upon request.

Yours faithfully,

Wilbur William Matthee
Specialist Nurse | BTech (Psych, Midw, Comm (R425)) | PG Dip HSM (NQF 8)

On Fri, 06 Mar 2026, 16:52 Investigations, <Investigations@jse.co.za> wrote:

Dear Mr Matthee

I confirm receipt of your email, the content of which is duly noted.

Thank you and regards,

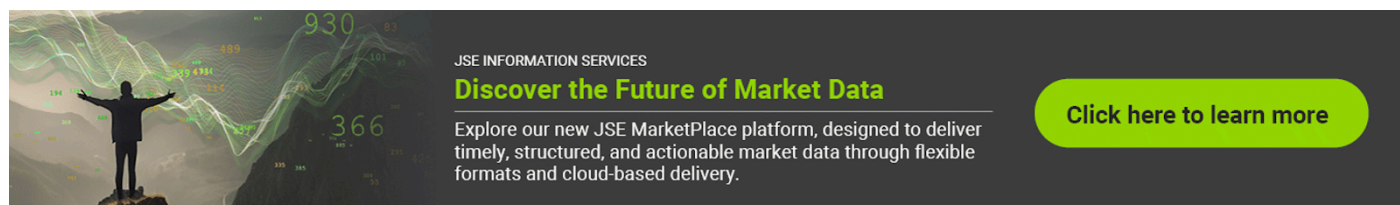
Nadia Jada

Head: Investigations | Issuer Regulation

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From: Wilbur William Matthee <info@ethichawks.co.za>

Sent: Friday, 06 March 2026 14:56

To: Investigations <Investigations@jse.co.za>

Cc: Jowidene van Schalkwyk <Jowidenev@jse.co.za>

Subject: Re: Assessment of complaint - Afrocentric Investment Corporation Limited - JvS\166792

Dear Ms Jada,

RE: AFROCENTRIC INVESTMENT CORPORATION LIMITED - COMPLAINT REF: JvS/166792

I acknowledge receipt of your letter dated 6 March 2026 regarding my complaint lodged with the JSE on 20 January 2026.

I note and accept the JSE's jurisdictional determination that the matters raised fall outside the scope of the JSE Listings Requirements and the Financial Markets Act, and that the appropriate forums for adjudication are the CCMA, the Labour Court, and the Equality Court as referenced in paragraph 5 of your letter.

I am grateful to the JSE Issuer Regulation Division for acknowledging the seriousness of the allegations raised, and I note the guidance provided regarding the competent statutory and judicial forums.

For your records, I confirm that:

Labour Court proceedings have been instituted against AfroCentric Investment Corporation Limited (Third Respondent), AfroCentric Health (RF) (Pty) Ltd (First Respondent), and Medscheme Holdings (Pty) Ltd (Second Respondent) as of 5 March 2026;

Two CCMA Certificates of Non-Resolution have been issued (WECT23564-25 and WECT24486-25, both dated 9 January 2026); and

The matter is now proceeding through the Labour Court as the JSE has indicated is appropriate.

I appreciate the JSE's prompt assessment and clear guidance on jurisdictional limitations. The response has been noted and will form part of the record in the ongoing Labour Court proceedings.

Thank you for your attention to this matter.

Yours sincerely,

Sr. Wilbur Matthee

Specialist Nurse Health Services Manager
SRN | BTech Psych, Midw, Community | PG Dip HSM (NQF 8)



On Fri, 06 Mar 2026, 10:08 Investigations, <Investigations@jse.co.za> wrote:

Good day Sirs,

Our letter dated 6 March 2026 is attached hereto for your attention.

Kindly acknowledge receipt.

Regards,

Jowidene van Schalkwyk

Investigations: Enforcement Specialist | Issuer Regulation

T +1 1 520 7029 | E jowidenev@jse.co.za

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5 attachments



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image004.png
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Letter_3_JSE_Issuer_Regulation_HCGS951842.PDF
111 KB

Investigations <Investigations@jse.co.za>

Wed, 25 Mar 2026 at 11:25

To: Wilbur William Matthee <info@ethichawks.co.za>, Investigations <Investigations@jse.co.za>

Cc: Jowidene van Schalkwyk <Jowidenev@jse.co.za>

Dear Mr Matthee

Thank you for your email.

To properly address the new issues raised in the attached letter, we would need to engage with the company regarding the section 162 director-delinquency application and the B-BBEE Commission's fronting investigation. Do you have any objection to us putting this information to the company for their response?

Regards,

[Quoted text hidden]
[Quoted text hidden]

Wilbur William Matthee <info@ethichawks.co.za>
To: Investigations <Investigations@jse.co.za>

Wed, 25 Mar 2026 at 21:39

Yes, please proceed.

Wilbur William Matthee
RN, BTech (Psych, Midw, Comm (R425)), PG Dip HSM (NQF 8)
[Quoted text hidden]

5 attachments

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